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Case Number: 25STCV18241 Hearing Date: July 9, 2026 Dept: 316

BACKGROUND

This is a lemon law case.

On June 30, 2025, Plaintiffs Michael

Torres, Mariam Soloarzano, and Wendy Roblero filed a complaint against

Defendants FCA US LLC, Huntington Beach Chrysler Dodge Jeep Ram, and DOES 1-10

alleging six causes of action stemming from Plaintiffs' purchase of an

allegedly defective vehicle.

On January 20, 2026, Plaintiffs filed a

first amended complaint ("FAC") against Defendants alleging the same six causes of action.

On February 23, 2026, Defendant FCA US LLC

filed a demurrer. Defendant also filed an accompanying Motion to Strike.

On June 25, 2026, Plaintiffs filed an

opposition to the demurrer and Motion to Strike.

On July 1, 2026, Defendant filed a reply

brief in support of the demurrer and the motion to strike.

TENTATIVE RULING

Defendant's demurrer is OVERRULED.

Defendant's Motion to Strike is also DENIED.

REQUEST FOR JUDICIAL NOTICE

Defendant requests the Court take judicial notice of five exhibits: (1) the First Amended Complaint filed in Eric J. Womack v. FCA US LLC, et al, Marin County Superior Court Case No. CV0006431; (2) the First Amended Complaint filed in Garry A Jones Jr and Kendra Jones v. FCA US LLC, et al., San Joaquin County Superior Court Case No. STK-CV-UBC-2025-0008561; (3) the First Amended Complaint filed in Patricia Ruiz, et al. v. FCA US LLC, et al., Los Angeles County Superior Court Case No. 25AVCV00771; (4) the First Amended Complaint filed in Maria Godinez v. FCA US LLC, et al., Los Angeles County Superior Court Case No. 25STCV19268; and (5) the First Amended Complaint filed in Armando Magana v. FCA US LLC, et al., Los Angeles County Superior Court Case No. 25AVCV00795.

All these exhibits are records of the court. Therefore, the Court will take judicial notice of the fact that these documents were filed, pursuant to Evidence Code section 452, subdivision (d)(1).

LEGAL STANDARD

“[A] demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (See Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (See Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a

pleading can be amended successfully. (Ibid.; see also Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

DISCUSSION

I.

Meet and Confer

Before filing a demurrer or motion to strike, the demurring party shall meet and confer with the opposing party in person, by telephone, or by video conference. (Code Civ. Pro. § 430.41, subd. (a).) The demurring party must file a declaration detailing their meet and confer efforts. (Code Civ. Proc., §§ 430.41, subd. (a)(3).)

“A determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer.” (Code Civ. Pro. § 430.41, subd. (a)(4).)

Here, the parties discussed the demurrer by telephone on January 28, 2026. (Cronin Decl., ¶ 2.) Thus, the parties have satisfied the meet and confer requirement. (See Code Civ. Proc., §§ 430.41, subd. (a).)

II.

Violation of Civil Code section 1793.2, subdivision (a)(3) (Cause of Action No. 3)

The Court finds that Plaintiffs have sufficiently alleged that Defendant failed to make sufficient parts and literature available to repair facilities.

Under Civil Code section 1793.2, subdivision (a)(3), the manufacturer must “[m]ake available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period.”

Here,
the FAC states:

Defendant

FCA's failure to comply with its obligations under Civil Code section 1793.2, subdivision (a)(3) was willful, in that Defendant FCA knew of its obligation to provide literature and replacement parts sufficient to allow its repair facilities to effect repairs during the warranty period, yet Defendant FCA failed to take any action to correct its failure to comply with the law. Accordingly, Plaintiffs are entitled to a civil penalty of two times Plaintiffs' actual damages, pursuant to Civil Code section 1794(c).

(FAC, ¶ 59.)

The

Court finds these allegations to be sufficient. Plaintiffs need not specifically allege which parts or literature were not made available to repair facilities because they do not know which specific parts or literature exist. That information is likely solely within Defendant's purview. The allegation that Defendant failed to make parts or literature available is sufficient to survive demurrer.

Furthermore,

this cause of action is not duplicative of Plaintiffs' other Song-Beverly claims. Civil Code section 1793.2, subdivision (a)(3) imposes a distinct statutory obligation different from the obligations underlying the other Song-Beverly claims. Therefore, the basis for this cause of action is distinct from the other Song-Beverly claims.

Accordingly,
the demurrer to this cause of action is overruled.

III.

Fraudulent

Inducement – Concealment (Cause of Action No. 6)

The Court finds

that Plaintiffs' claim for fraudulent inducement – concealment is not subject to demurrer. Accordingly, Defendant's demurrer is overruled.

A.

Heightened

Pleading Standard

To state a cause of action

for fraudulent concealment, the plaintiff must establish: (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact. (See *Rattagan v. Uber Technologies, Inc.*, (2024) 17 Cal.5th 1, 49 (Rattagan) [emphasis added].)

Generally, fraud must be pled with

particularity. (See *Hills Transportation Co. v. Southwest Forest Ind., Inc.*, (1968) 266 Cal.App.2d 702, 707.) Pleadings must generally allege facts as to “how,

when, where, to whom, and by what means the representations were tendered.” (Stansfield v. Starkey, (1990) 220 Cal. App. 3d 59, 73; Wald v. Truspeed Motorcars, LLC, (2010) 184 Cal.App.4th 378, 393.) However, in cases of nondisclosure or concealment of facts, one cannot show “by what means” something did not

happen, or “when” it did not happen, or “where” it never happened. (See *Alfaro v. Community Housing Improvement System & Planning*

Assoc., Inc., (2009) 171 Cal.App.4th 1356, 1384.) Therefore, “[l]ess specificity is required when ‘it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy. . . .’” (Committee on Children’s Television, Inc. v. General Foods Corp., (1983) 35 Cal.3d 197, 217.)

B.

Sufficient

Allegations of Alleged Defects

The Court holds

that Plaintiffs sufficiently pled the alleged defects in the subject vehicle.

In *Dhital v. Nissan North America, Inc.*, (2002) 84 Cal.App.5th 828, the plaintiff alleged that “the CVT transmissions were defective in that they caused such problems as hesitation,

shaking, jerking, and failure to function. The [complaint] also alleged [defendant] was aware of the defects as a result of premarket testing and consumer complaints

that were made both to the National Highway Traffic Safety Administration and to [defendant] and its dealers.” (Id. at p.

844.) Accordingly, the court held that plaintiff adequately pled facts about the purported defects. (See id. at pp. 844-45.)

Here,

Plaintiffs alleged that the subject vehicle’s 3.0L engine was defective as it suffered from loud noises, unintended shifting out of gear, engine failure, and poor running characteristics. (See FAC, ¶¶ 14, 71.) Furthermore, Plaintiffs alleged that Defendant had knowledge of these alleged defects via “pre-production and postproduction testing data; early consumer complaints about the Engine Defect made directly to FCA and its network of dealers; aggregate warranty data compiled from FCA’s network of dealers; testing conducted by FCA in response to these complaints; as well as warranty repair and part replacements data received by FCA from FCA’s network of dealers, amongst other sources of internal information.” (FAC, ¶

103.) These facts very closely mirror those pleaded in *Dhital*. (See *Dhital v. Nissan North America, Inc.*, 2002) 84 Cal.App.5th 828, 844.) Therefore, the same ruling applies; Plaintiffs have sufficiently alleged the defects that Defendant allegedly concealed. √√

C.

Actionable

Misrepresentation, Concealment, and Disclosure

The Court holds that

Plaintiffs need not identify any affirmative acts or representations by Defendant which were meant to prevent discovery of the subject vehicle’s defects. Furthermore, Plaintiffs have sufficiently alleged that Defendant necessarily possessed full information concerning material defects with the subject vehicle.

Plaintiffs are alleging fraudulent concealment, not fraudulent misrepresentation. Thus, they only need to allege that Defendant intended to defraud them by intentionally concealing or suppressing a material fact. (See *Rattagan*, supra, 17 Cal.5th at p. 49.) They need not identify any affirmative acts or representations by Defendant. It is sufficient that it appears from the nature of the allegations that Defendant necessarily possessed full information concerning material defects with the subject vehicle. (See *Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 217.) √√

Here, it does the allegations are sufficient to support an

inference that Defendant necessarily possessed full information concerning material defects with the subject vehicle. For instance, Plaintiffs allege that Defendant had knowledge of material defects

via “pre-production and postproduction testing

data; early consumer complaints about the Engine Defect made directly to FCA

and its network of dealers; aggregate warranty data compiled from FCA's network

of dealers; testing conducted by FCA in response to these complaints; as well

as warranty repair and part replacements data received by FCA from FCA's

network of dealers, amongst other sources of internal information.” (FAC, ¶

103.) These facts very closely

mirror those pleaded in Dhital

v. Nissan North America, Inc. (2002)

84 Cal.App.5th 828, 844-45. In said case, the court reversed the trial court's order sustaining the demurrer to plaintiff's claim for fraudulent

inducement by concealment and held that plaintiff

had actually pleaded facts with requisite specificity.

(See *ibid.*) The

Court finds this holding applies

here.

In sum, Plaintiffs have

sufficiently alleged that Defendant

necessarily possessed full information concerning material defects with the subject vehicle.

D.

Plaintiffs'

Reliance

The Court finds that

Plaintiffs have put forth allegations sufficient to support a finding that they

actually and justifiably relied on Defendant's alleged concealment.

Here, the FAC states

“Plaintiffs are reasonable consumers who interacted with FCA's sales

representatives and reviewed materials disseminated by FCA concerning FCA

Vehicles prior to purchasing the Subject Vehicle. Had Defendant disclosed the

Engine Defect, a safety hazard, to its sales representatives and/or the

consumer public, Plaintiffs would have been aware of it and would not have

purchased the Subject Vehicle.” (FAC, ¶ 76.)

The Court finds these

allegations to be sufficient. These allegations are that Plaintiffs relied on Defendant's sale representatives and advertising materials, both of which were alleged to be justifiable under the circumstances. Furthermore, Plaintiffs allege they actually relied on these sources because they would not have purchased the vehicle if the alleged defects were conveyed. In short, Plaintiffs have put forth facts sufficiently alleging their actual and justifiable reliance on Defendant's alleged concealment.

E.

Defendant's

Pre-sale Knowledge of Alleged Defects

The Court finds that

Plaintiffs have sufficiently alleged that Defendant had pre-sale knowledge of the subject vehicle's alleged defects.

Plaintiffs allege that Defendant had knowledge of material defects of material defects via "pre-production and postproduction testing data; early

consumer complaints about the Engine Defect made directly to FCA and its network of dealers; aggregate warranty data compiled from FCA's network of dealers; testing conducted by FCA in response to these complaints; as well as warranty repair and part replacements data received by FCA from FCA's network

of dealers, amongst other sources of internal information." (FAC, ¶ 103.) These facts closely mirror those alleged in *Dhital v. Nissan North America, Inc.* (2002) 84 Cal.App.5th 828, 844-45. In *Dhital*,

the trial court's order sustaining the demurrer to fraudulent inducement by concealment was reversed because the court found that plaintiff

had alleged facts with requisite specificity. (See *id.* at 844-45.) The Court finds this holding applies here.

In

opposition, Defendant contends that Plaintiffs' allegations are boilerplate and broad. However, as evidenced above, the Court of Appeals found that similar

allegations were sufficient to withstand demurrer. (See *Dhital v. Nissan North America, Inc.* (2002) 84 Cal.App.5th 828, 844-45.) Therefore, the same ruling must apply.

The Court finds that

Plaintiffs have sufficiently alleged that Defendant had pre-sale knowledge of the subject vehicle's alleged defects.

F.

Economic

Loss Rule

The Court finds that Plaintiffs have alleged harm that was not reasonably contemplated when the parties agreed to a warranty contract. Accordingly, this cause of action is not subject to the economic loss rule at this stage of the proceedings.

Under the economic loss rule, there is generally no recovery in tort for purely economic losses arising from a contractual relationship, but there are exceptions for intentional tort claims like fraud. (See *Rattagan*, supra, 17 Cal.5th at p. 38.) For purposes of this exception, the California Supreme Court has stated that fraudulent concealment claims are treated no differently than affirmative fraudulent conduct, “so long as [1] a plaintiff can establish all the required elements of the cause of action independently of the parties’ contractual rights and obligations and [2] can demonstrate an exposure to risks of harm beyond those that would be reasonably expected as the result of a contractual breach.” (Id. at p. 39.) “If the alleged breach is based on a failure to perform as the contract provides, and the parties reasonably anticipated and allocated the risks associated with the breach, the cause of action will generally sound only in contract because a breach deprives an injured party of a benefit it bargained for. However, if the contract reveals the consequences were not reasonably contemplated when the contract was entered and the duty to avoid causing such a harm has an independent statutory or public policy basis, exclusive of the contract, tort liability may lie.” (Id. at p. 27.)

The Court finds that a party entering a warranty contract has not bargained with the expectation that the manufacturer has concealed known material defects. (Ibid.) This is further supported by Plaintiffs’ allegation that “Had Defendant disclosed the Engine Defect, a safety hazard, to its sales representatives and/or the consumer public, Plaintiffs would have been aware of it and would not have purchased the Subject Vehicle.” (FAC, ¶ 76.) In short, the Court believes buying a vehicle with a known material defect risks harm beyond those that would reasonably be expected as a result of a manufacturer not fulfilling its warranty obligations once a problem arises with a vehicle. (See *Rattagan*, supra, 17 Cal.5th at p. 27.)

Furthermore, California has a strong policy interest, independent from the warranty itself, in ensuring automotive manufacturers do

not withhold safety-related information from consumers. (See *id.* at p. 44 [“California public policy strongly supports imposing a tort duty on contractual parties to refrain from fraudulent deceit and favors enforcement of valid fraud actions, which the Legislature has facilitated through the enactment of the general fraud statute.”].) Therefore, the Court will also rule in accordance with this policy interest.

In short, the Court finds that Plaintiffs’ claim for fraudulent inducement by concealment is not barred by the economic loss rule.

G.
Duty
to Disclose

The Court finds that Plaintiffs have alleged a preexisting transactional relationship with Defendant. Thus, Defendant had a duty to disclose material facts to Plaintiffs.

A duty to disclose a material fact can arise if: (1) it is imposed by statute; (2) the defendant is acting as plaintiff’s fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment). (Civ. Code § 1710; see also *Rattagan, supra*, 17 Cal.5th at p. 40.)

“Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as ‘between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. [Citation.]’ All of these relationships are

created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances.” (Rattagan, supra, 17 Cal.5th at pp. 40-41 [citing LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 337 (LiMandri)].) “Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (Rattagan, supra, 17 Cal.5th at p. 41 [citing Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 312 (Bigler)].) A direct transactional relationship can arise out of “any kind of contractual agreement.” (LiMandri, supra, 52 Cal.App.4th at p. 337.)

Here, Plaintiffs allege they entered a warranty contract with Defendant when they purchased the subject vehicle. (See FAC, ¶ 7.) This warranty contract can form the basis of a transactional relationship. (See LiMandri, supra, 52 Cal.App.4th at p. 337.) Also, the warranty contract was a “direct dealing” because it was made exclusively between the parties. (See FAC, Exh. A [using language demonstrating contract’s applicability only to Plaintiffs such as “you” and “yours”]; Bigler, supra, 7 Cal.App.5th at p. 312.) Therefore, Plaintiffs have alleged a preexisting transactional relationship with Defendant. Accordingly, Plaintiffs have sufficiently alleged that Defendant had a duty to disclose material facts to Plaintiffs. (See Rattagan, supra, 17 Cal.5th at pp. 40-41.)

IV.
Motion
to Strike

The Court finds that Plaintiffs have alleged facts sufficient to support a request for punitive damages. For this reason, Defendant’s Motion to Strike is denied.

“Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e).” (Code Civ. Proc., § 435, subd. (b)(2).) “The court may, upon a motion made pursuant to Section 435,

or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436.)

To succeed on a motion to strike punitive damages, it must be said as a matter of law that the alleged behavior was so vile, base, or contemptible that it would be looked down upon and despised by ordinary decent people. (See *Angie M. v. Superior Court* (1995) 37

Cal.App.4th 1217, 1228-29.) Civil Code section 3294 provides that punitive damages are available in non-contract actions where defendant is guilty of malice, oppression, or fraud, defined as follows:

1. “Malice” means

conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

2. “Oppression” means

despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.

3. “Fraud” means an

intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, § 3294, subd. (c).)

The only potential cause of action supporting the request for punitive damages is Plaintiffs’ sixth cause of action for fraudulent inducement – concealment. The Court has determined that this cause of action survives the demurrer. (See § III.) Therefore, Plaintiffs have a legitimate basis on which to request punitive damages at this stage. Accordingly, Defendant’s Motion to Strike is denied.

CONCLUSION

For the foregoing reasons, Defendant’s demurrer is OVERRULED. Defendant’s Motion to Strike

is also DENIED.